

24PSCV02402 24PSCV02402

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-23

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Pasamonte v. Rosales,

et al., Case

No. 24PSCV02402

ORDER ON MOTION

FOR RECONSIDERATION

Plaintiffs'

Motion for Reconsideration is DENIED.

Background

Plaintiffs

Lourdes I. Pasamonte ("Lourdes") and Angelito F. Pasamonte ("Angelito"),

individuals and Trustees of the Lourdes I. Pasamonte & Angelito F.

Pasamonte Revocable Living Trust dated August 4, 2022 (together, "Plaintiffs") brought

this lawsuit based on their allegations that they are the sole owners of the property located at 2609 E. Mary Court in West Covina ("subject property").

They alleged that while their grandchildren Marcus Timothy P. Rosales

("Marcus") and Arnold Paolo I. Rosales ("Arnold") were placed on title to the

subject property to facilitate their parents' (i.e., Angelo Rosales ["Angelo"]

and Maria Rosales ["Maria"]) use and occupation of the subject property as

tenants with regard to utilities and maintenance, Plaintiffs never intended to

grant any ownership interest in the subject property to Marcus and/or Arnold.

On

July 14, 2026, the matter proceeded to bench trial. On July 23, 2026, the Court

took the matter under submission. On July 27, 2026, the Court issued its

decision following the bench trial. In doing so, the Court stated that “[t]his order constitutes an interlocutory determination and not the final judgment on accounting or distribution.” The Court ruled, in relevant part, as follows:

“The Court finds that Plaintiffs have not met their burden of proof as to the causes of action in the Operative Complaint and thus will order judgment in Defendants’ favor on the Operative Complaint. As to the Cross-Complaint, at least for the majority of the causes of action, the Court similarly concludes that the Cross-Complainants have not met their burden of proof (i.e., as to the causes of action for Conversion, Replevin, Intentional Infliction of Emotional Distress, and Civil Harassment). However, as to the key property dispute, the Court affirms that Plaintiffs hold a 1/3 interest and Defendants Marcus and Arnold collectively hold a 2/3 interest in the Subject Property. The Court thus will order partition by sale of the Subject Property, as further detailed herein. The parties are directed to meet and confer within 20 days of the notice of ruling regarding the procedures for partition by sale and as to the selection of a referee and are ordered to file a Joint Status Report within 30 days of the notice of ruling. Cross-Complainants are ordered to file a Proposed Interlocutory Judgment consistent with this order within 30 days of the notice of ruling. Finally, the parties are directed to meet and confer within 20 days of the notice of ruling regarding arranging a time for Plaintiffs to retrieve the undisputed items of personal property left by Plaintiffs at the Subject Property.”

A Status

Conference Re: Joint Status Report is set for September 23, 2026.

Legal

Standard

Code of Civil Procedure section 1008, subdivision

(a) provides as follows: “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed

to be shown.”

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500; Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342 [“[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.”]; New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213 [“The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.”].)

Reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling; that is not a “new” or “different” matter. (Gilberd v. AC Transit, supra, 32 Cal.App.4th at p. 1500.) Moreover, counsel’s mistake based on ignorance of the law is not a proper basis for reconsideration. (Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 670.)

Discussion

Plaintiffs

move for an order reconsidering the Court’s Ruling on Submitted Matter entered on July 27, 2026, that followed the bench trial conducted from July 14-July 23, 2026. [FN]

Plaintiffs,

however, failed to file an affidavit, or even a declaration, with the moving papers as required under Code of Civil Procedure section 1008, subdivision (a). Plaintiffs acknowledge said failure but argue that the “omission is cured” because Defendants were on notice of every issue and counsel filed a declaration with the reply. (Reply at p. 2.)

Plaintiffs

argue that “Section 1008(a) itself contains no provision barring a later-filed

declaration from supplying the required showing.” (Id.) Plaintiffs’

contention is unpersuasive and misstated. The very words of the statute require

an affidavit be filed with the application. (Code Civ. Proc., § 1008, subd. (a) [“The party making the application shall state by affidavit what

application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown (emphasis added).”].)

A court does not have jurisdiction to hear a motion

for reconsideration if the motion is not compliant with section 1008 (i.e.,

lacking an affidavit). Section 1008, subdivision (e) clearly states: “This

section specifies the court’s jurisdiction with regard to applications for

reconsideration of its orders and renewals of previous motions, and applies to

all applications to reconsider any order of a judge or court, or for the

renewal of a previous motion, whether the order deciding the previous matter or

motion is interim or final. No application to reconsider any order or for the

renewal of a previous motion may be considered by any judge or court unless

made according to this section.”

An application without an affidavit is invalid. (See

Rowan v. Kirkpatrick (2020) 54 Cal.App.5th 289, 296-297 [“Kirkpatrick’s

June 2, 2020, motion for reconsideration did not extend the time to appeal

because it was procedurally defective and therefore not a ‘valid’ motion under

Code of Civil Procedure section 1008, subdivision (a). . . . Under Code of

Civil Procedure section 1008, subdivision (a), ‘any party affected’ by an order

of the trial court ‘may, within 10 days after service upon the party of written

notice of entry of the order and based upon new or different facts,

circumstances, or law, make application to the same judge or court that made

the order, to reconsider the matter and modify, amend, or revoke the prior

order.’ . . . Both a motion for reconsideration under Code of Civil Procedure,

subdivision (a), and a so-called ‘renewed’ motion under Code of Civil Procedure

section 1008, subdivision (b), must be accompanied by a supporting affidavit.

(internal citation omitted). . . . Kirkpatrick’s renewed motion was not ‘valid’

because it was not supported by an affidavit setting forth new or different

facts, circumstances, or law.]”.)

Furthermore, in Branner v. Regents of Univ. of

California (2009) 175 Cal.App.4th 1043, the Court of Appeal addressed the

issue of a later-filed affidavit and concluded that the trial court’s allowance

of a later-filed affidavit was improper. (Branner, supra, 175

Cal.App.4th at pp. 1048-1049.) There, the court held that Branner's motion for reconsideration could not "be transformed from invalid to valid when the trial court later allowed him to file the affidavit" for two principal reasons: (1) "the language of rule 8.108(e) does not appear to countenance a piecemeal filing of a motion" and (2) "the requirement that a motion to reconsider be valid at the time it is served and filed serves the purpose of precluding the improper and uncertain extension of the time to appeal," thus "promot[ing] the finality of judgments by forcing the losing party to take an appeal expeditiously or not at all." (Id.)

Plaintiffs point to *In re Marriage of Barthold*

(2008) 158 Cal.App.4th 1301, in support of their argument that while the motion technically violates Code of Civil Procedure section 1008, the Court still has the right to consider the motion on its merits. Plaintiffs, however, acknowledge that the holdings in *In re Marriage of Barthold* and the relied upon case *Le Francois v. Goel* (2005) 35 Cal.4th 1094, state that a court can move "on [its] own motion" to reconsider its earlier motion even if the filed motion is procedurally barred. (*In re Marriage of Barthold*, supra, 158 Cal.App.4th at 1308 ["We conclude that *Le Francois* simply requires that the trial court reconsider a prior ruling based on its own realization that the ruling was erroneous, and not based upon a determination that the motion to reconsider should itself be granted on its merits."].) The Court is not persuaded that its July 27, 2026 ruling was erroneous and thus declines to act sua sponte.

Based

on the foregoing, Plaintiffs' motion for reconsideration is DENIED.

[FN] As a preliminary matter, the

Court notes that Code of Civil Procedure section 1008 applies to motions to reconsider interlocutory orders. (Code Civ. Proc., § 1008, subds. (e), (h) ["(e) This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. ... (h) This section applies to all applications for interim orders."].)